



Motor Vehicles (Passenger Insurance) Act 1971

1971 CHAPTER 36

An Act to amend the Road Traffic Act 1960 so as to require users of motor vehicles to be insured in respect of liability for death or bodily injury to passengers; and for connected purposes. [27th May 1971]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) In subsection (4) of section 203 of the Road Traffic Act 1960 (requirements in respect of policies of insurance), paragraph (a) and the proviso are hereby repealed. Cover for liability in respect of passengers to be compulsory. 1960 c. 16.

(2) Where after the commencement of this Act a person uses a motor vehicle in circumstances such that under section 201 of the Road Traffic Act 1960 there is required to be in force in relation to his use of it such a policy of insurance or security as is mentioned in subsection (1) of that section, then, if any other person is carried in or upon the vehicle while the user is so using it, any antecedent agreement or understanding between them (whether intended to be legally binding or not) shall be of no effect so far as it purports or might be held—

- (a) to negative or restrict any such liability of the user in respect of persons carried in or upon the vehicle as is required by section 203 of that Act to be covered by a policy of insurance; or
- (b) to impose any conditions with respect to the enforcement of any such liability of the user;

and the fact that a person so carried has willingly accepted as his the risk of negligence on the part of the user shall not be treated as negating any such liability of the user.

For the purposes of this subsection references to a person being carried in or upon a vehicle include references to a person entering or getting on to, or alighting from, the vehicle, and the reference to an antecedent agreement is to one made at any time before the liability arose.

Short title,
commence-
ment and
extent.

2.—(1) This Act may be cited as the Motor Vehicles (Passenger Insurance) Act 1971.

(2) This Act shall come into force on such date as the Secretary of State may by order made by statutory instrument appoint.

(3) This Act does not extend to Northern Ireland.

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